



Statutory Orders (Special Procedure) Act 1965

1965 CHAPTER 43

An Act to amend the Statutory Orders (Special Procedure) Act 1945 so far as it relates to petitions under that Act, and to extend the period for moving a resolution to annul an order to which that Act applies.
[5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments
of Act of
1945.

1945 c. 18

(9 & 10 Geo. 6.).

1.—(1) The Statutory Orders (Special Procedure) Act 1945 shall be amended as follows.

(2) The period for presenting petitions under the Act against an order subject to special parliamentary procedure, and the resolution period as defined by section 4(2) of the Act, shall each be twenty-one days, instead of fourteen days, and accordingly for the words “fourteen days” there shall be substituted the words “twenty-one days” in—

section 3(1) and 3(3),

section 4(1) (in both places),

section 9(a), and

in the part of section 10(3) setting out section 4(1) of the Act as it applies in Scotland.

(3) In section 3(3) of the Act (under which the Lord Chairman of Committees and the Chairman of Ways and Means must consider whether a petition discloses a substantial ground of objection to the order) the words “and that the petition discloses a substantial ground of objection to the order” shall cease to have effect.

(4) A petition of general objection shall under section 4(2) of the Act stand referred to a joint committee of both Houses unless either House of Parliament has within the resolution period as defined in that subsection resolved that it be not so referred, and accordingly in the proviso to the said section 4(2) for the words—

“ that petition shall not stand so referred unless either House has ordered as aforesaid that the petition be so referred ”

there shall be substituted—

“ that petition shall not stand so referred if either House has resolved within the resolution period that the petition be not so referred ”,

and the proviso to section 4(1) of the Act (under which either House may order that a petition of general objection be referred to a joint committee) shall cease to have effect.

2.—(1) This Act may be cited as the Statutory Orders (Special Citation, Procedure) Act 1965 and the Statutory Orders (Special Procedure) extent, Act 1945 and this Act may be cited together as the Statutory commencement and Orders (Special Procedure) Acts 1945 and 1965. repeals.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall have effect as respects any order laid before both Houses of Parliament after the expiration of a period of one month beginning with the date on which this Act is passed.

(4) The Acts mentioned in the Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

SCHEDULE

REPEALS

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 18.	The Statutory Orders (Special Procedure) Act 1945.	In section 3(3) the words "and that the petition discloses a substantial ground of objec- tion to the order". In section 4(1) the proviso (ending with the words "fol- lowing sections").
10 & 11 Eliz. 2. c. 58.	The Pipe-Lines Act 1962.	Section 55.
1964 c. 40 ...	The Harbours Act 1964.	Section 56.